

**Risk averse**

| <b>Fee rule</b>       | <b>Meritorious-P<br/>shortfall</b> | <b>Nonliable-D<br/>burden</b> | <b>Liabile-D<br/>excess burden</b> | <b>Gross outcome<br/>error</b> | <b>Total<br/>expenditures</b> |
|-----------------------|------------------------------------|-------------------------------|------------------------------------|--------------------------------|-------------------------------|
| American              | 0.330                              | 0.283                         | 0.002                              | 0.326                          | 0.468                         |
| Trial Fee-Shifting    | 0.393                              | 0.098                         | 0.001                              | 0.302                          | 0.260                         |
| Complete Fee-Shifting | 0.478                              | 0.362                         | 0.111                              | 0.400                          | 0.882                         |